Revision Date:
12/01/2019

Background:
The Lynch v. Rank court order mandates specific requirements for both the DHCS and County of San Diego, Health and Human Services Agency related to identification, maintenance of lists, annual notification and review of individuals potentially eligible to Pickle benefits.

In addition to the reformatting, this section has been revised for clarification.

Policy:
A. Actions Taken
SSA Actions
During the month of December each year, the Social Security Administration (SSA) notifies DHCS of all SSI/SSP recipients scheduled for discontinuance as a result of the Cost of Living Adjustment (COLA). These beneficiaries must be evaluated for no Share of Cost (SOC) Medi-Cal, through the Pickle Amendment.

DHCS Actions
DHCS will initiate extended Medi-Cal benefits for all persons on the report provided by SSA by placing these beneficiaries in Craig v. Bonta aid codes; 1E aged, 2E blind or 6E disabled.

During the last two weeks of December, DHCS sends the Pickle Amendment Notice (Pickle Annual Stuffer) to Medi-Cal beneficiaries on the SSA discontinuance report. The notice advises individuals that they may be eligible to Medi-Cal benefits without a share of cost (SOC) under the Pickle Amendment and to contact their county social services office to apply.

County Actions
By the first or second week of January, DHCS sends the Pickle Special Notice (SN) report of all individuals discontinued from SSI/SSP due to the Title II COLA to the county. These beneficiaries are also placed on the county's Exception Eligibles report and will remain on the report until a Pickle Amendment review or an ABD Medi-Cal Linkage determination has been completed.

Procedures:
B. Review Procedures
A Pickle Amendment evaluation is mandatory for every individual on the Pickle SN report. An individual may also contact the county to request a Pickle evaluation.

Medi-Cal programs under this Amendment are:

- Pickle
- Disabled Adult Children (DAC)
- Disabled Widow(er) (DW)

It is important to screen for potential eligibility for all three programs. If the individual is eligible to Pickle, DAC or DW at the same time, grant the DAC program **first**. When the individual doesn't meet the criteria for Pickle, DAC, or DW, review for other Medi-Cal program eligibility.

C. Pickle Amendment Review

A Pickle Amendment eligibility review is required:

- At initial application
- At redetermination
- In the month after a Social Security Title II COLA
- Upon request
- Following a break in aid

The only exceptions are those individuals discontinued by SSA due to death or are incarcerated in a correctional facility.

Program Impacts:

The report is loaded into SharePoint by Automation for processing.

References:

ACWDL 02-05, 10-02

Sunset Date:

This policy will be reviewed for continuance by 12/31/2022

Approval for Release:

12-3-19

Rick Wanne, Director
Eligibility Operation

Revision Date:
12/01/2019

Background:
In December of each year, DHCS mails Pickle Annual Stuffer notices to active Medi-Cal beneficiaries in aid codes 14, 17, 24, 64, and 67 who:

- Currently receive Title II Retirement, Survivor's and Disability Insurance Social Security Benefits
- Have been discontinued from the SSI/SSP program in the last three years
- Were determined ineligible during the Pickle screening process the previous year

The Pickle stuffer notice informs these beneficiaries to contact the county if they would like to apply for zero SOC Medi-Cal through the Pickle Amendment.

This section has been reformatted and procedures moved to Processing Guide 29.

Policy:
The beneficiaries who receive the Pickle Annual Stuffer are aged, blind, and disabled and must be evaluated for Medi-Cal eligibility through the Pickle amendment. When determined ineligible, evaluate for all other ABD linked Medi-Cal Programs.

A. Annual Pickle Amendment Reviews
By terms of the Lynch v. Rank court order, the Pickle Amendment reviews must be completed during the months of January through March of each year. Each potentially eligible Pickle individual must receive a Pickle Medi-Cal notice from DHCS for three consecutive years. One year of ineligibles will be purged each year.

Persons on the Pickle SN report must have their eligibility to Pickle reevaluated each year at the time of the annual Title II COLA. The individual's name will appear on the Pickle SN report when a Pickle determination was not completed in the previous year or the individual was not eligible for Pickle through the Pickle Amendment for the previous year.

The avenues in which the staff are notified to process individuals on the Pickle SN report are:

1) The Pickle SN report is uploaded to Share Point by Automation
2) Individual brings their Pickle amendment notice in to the FRC
3) Individual calls Access with questions about the Pickle amendment notice

Procedures:
Screen the individual for potential Pickle eligibility and determine if the beneficiary has an active county Medi-Cal case. Follow the procedures outlined in Processing Guide 29.

When the Pickle determination is complete. Submit a HHSA 14-28 MEDS On-Line Request, checking the "Remove Pickle Indicator" box. This removes the individuals name from the Pickle SN report for the next year.

Program Impacts:
None

References:
California Code of Regulations (CCR) Title 22, Section 50247
ACWDL 87-75, 94-86, 95-45, 06-31, 10-01

Sunset Date:
This policy will be reviewed for continuance by 12/31/2022

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
12/01/2019

Background:
The *Craig v. Bonta* court order mandates individuals discontinued from SSI/SSP continue to receive full scope, zero SOC Medi-Cal until an eligibility determination is completed. Basic Medi-Cal eligibility requirements addressed in this section cover only those eligibility requirements that are different for Pickle eligible individuals and must be followed when evaluating the Pickle program.

Included with the reformatting, this section has been revised to provide clarifications to the Pickle program.

Policy:

A. Pickle Eligibility Criteria

An individual must meet **all** of the following criteria to be eligible to Pickle:

- Currently **receiving Social Security II benefits**
- Received Social Security Title II and Supplemental Security Income (SSI) and/or State Supplementary Payment (SSP) benefits simultaneously in any month **after** April 1977
- Discontinued from SSI/SSP after April 1977
- Received a Social Security Title II Cost-of-Living Adjustment (COLA) since being discontinued from SSI/SSP **and** would be entitled to receive SSI/SSP benefits if the COLA was disregarded

B. Pickle Handbook

The DHCS issued Pickle Handbook sections, referenced in Desk Aid 92, include information and instructions necessary to determine Pickle eligibility and comply with the Craig v. Bonta and Lynch v. Rank court orders.

C. Worksheets and Notice Of Action (NOA) Reminders

- A NOA is required when approving or discontinuing Pickle, DAC, and DW benefits
- If a NOA does not generate, a manual NOA **must** be used and saved in the case file
- The Pickle Amendment worksheets are in the Electronic Forms Repository (EFR) and on the DHCS forms website, the NOAs are located on the MEDS Homepage

EFR/DHCS Website

DHCS 7019	Financial Eligibility Worksheet (Pickle Child)
DHCS 7020	Screening Worksheet
DHCS 7021	Financial Eligibility Worksheet
DHCS 7029	Pickle Disregard Computation
DHCS 7037	Pickle Resources Worksheet
DHCS 7044	Statement of Living Arrangements
DHCS 7075	Pickle Needs Test
MC 210B	Supplemental to Statement of Facts (Pickle)

MEDS Homepage

DHCS 7026 Denial/Discontinuance (Pickle/DAC)
DHCS 7027 Pickle/DAC Approval

D. Screening Process

The steps below are followed when evaluating for Pickle, DAC, and DW:

Step 1 Screen individuals for Age, Blindness, or Disability
Step 2 Identify receipt of Social Security Title II income
Step 3 Review MEDS Pickle Tickler Field
Step 4 Review Program Specific Criteria
Step 5 Determine eligibility
Step 6 Notices of Action and Case Narratives

E. Pickle Amendment Property Rules

The Property rules used for Pickle, DAC, and DW are based on SSI rules. The treatment of property is very similar to traditional Medi-Cal with a few differences. The differences include:

- Individuals **cannot** spend down excess property to become eligible within the month
- Property Limits
  - Pickle Couple $3,000
  - Pickle Individual $2,000
  - Pickle Child – Allow the property limit for his/her parents of $3,000 and then allow the property limit for an individual of $2,000

DHCS 7037 form may be used to evaluate the Pickle individual's property.

The table below shows definitions of certain items of property. These items are excluded from the property reserve, regardless of their value.

Term	Definition	Examples
Household Goods	Items of personal property, found in or near the home that are used on a regular basis; and items needed by the householder for maintenance, use and occupancy of the premises as a home.	Furniture, appliances, electronic equipment, personal computers, television sets, carpets, cooking and eating utensils, and dishes.
Personal Effects	Items of personal property ordinarily worn or carried by the individual and articles otherwise having an intimate relation to the individual.	Clothing, personal jewelry, wedding and engagement rings, books, musical instruments, items of cultural or religious significance, prosthetic devices, and wheelchairs.

Items acquired or held because of their value or as an investment are not considered household goods or personal effects for purposes of this exclusion.

F. Items of Unusual Value
There is no property limit for items of unusual value.

Procedures:
G. Pickle Program Income
The income computation for Pickle, DAC, and DW varies for each program. The Pickle Disregard Computation determines the dollar amount to be disregarded from the Social Security Title II benefit amount due to the COLA.

See Processing Guide 29 for Pickle procedures.

Program Impacts:
None

References:
California Code of Regulations (CCR) Title 22, Section 50247
ACWDL 05-28

Sunset Date:
This policy will be reviewed for continuance by 12/31/2022

Approval for Release:
12-3-19
Rick Wanne, Director
Eligibility Operations

Revision Date:
12/01/2019

Background:
Public Law 99-643 amended the Social Security Act to provide categorical zero SOC Medi-Cal to a limited group of former SSI/SSP recipients who receive Title II benefits as "Disabled Adult Children." These persons' eligibility must be determined through the Pickle Amendment using DAC rules.

Included in the reformatting, this section is being updated to align with Pickle Handbook Section 6 - DAC, and the procedures moved to Processing Guide 29.

Policy:

A. DAC Eligibility Criteria
In order to be eligible to the Medi-Cal DAC program the individual must:

- Be at least 18 years old
- Deemed disabled by Social Security before 22 years of age
- **Previously received** SSI/SSP benefits on the basis of blindness or disability, which began before reaching 22 years of age
- **Actively** receiving Retirement, Survivors, Disability Insurance (RSDI) childhood disability benefits due to their disability
- Discontinued from SSI/SSP due to becoming eligible on or after July 1, 1987 to RSDI childhood disability benefits or because of an increase to those benefits

B. Exception to Title II COLA Requirement
Persons identified by DHCS as potentially eligible to Medi-Cal though the Pickle amendment under the Disabled Adult Children (DAC) rules, are not required to have received a Title II COLA since their discontinuance from SSI/SSP.

Note: Beneficiaries who are discontinued from SSI/SSP due to admission to a long-term care facility will not be included in the DAC extended eligibility process.

Important Reminder – Screen for potential eligibility for all three programs; Pickle, DAC, and DW. If the individual is eligible to Pickle, DAC, and DW at the same time, grant the DAC program first.

C. Notifications
The Pickle amendment notice sent by DHCS, informs these individuals that they are eligible to a Medi-Cal evaluation under the Pickle Amendment. MPG 05.10.02

A NOA is required when approving or discontinuing Pickle, DAC, and DW benefits. MPG 05.10.03

D. Screening Process
When screening for Pickle, DAC, and DW, follow the steps in MPG 05.10.03.

E. Pickle Amendment Property Rules

The Property rules used for Pickle, DAC, and DW are based on SSI rules. See MPG 05.10.03 for the treatment of property when evaluating for DAC.

Procedures:

F. DAC Income Determination

When determining DAC eligibility:

- Disregard the entire amount of Social Security Title II income received as childhood disability benefits
- Disregard any subsequent COLA received as childhood disability benefits when completing the Pickle Needs Test worksheet
- Include any income from any other sources when completing the budget worksheet

See Processing Guide 29 for Pickle procedures.

Program Impacts:

None

References:

California Code of Regulations (CCR) Title 22, Section 50247
ACWDL 93-30, 94-86, 02-05, 10-01

Sunset Date:

This policy will be reviewed for continuance by 12/31/2022

Approval for Release:

12-3-19

Rick Wanne, Director
Eligibility Operations

Revision Date:
12/01/2019

Background:
The Consolidated Omnibus Reconciliation Act of 1985 (COBRA '85) established criteria to be used in restoring and continuing Medi-Cal eligibility for disabled widows if their 1983 RSDI COLA resulted in a loss of their eligibility for SSI/SSP payments. Included in the reformatting, this section is being revised to align with previous sections for clarity, and the procedures moved to Processing Guide 29.

Policy:

A. DW Eligibility Criteria

Individuals must meet all of the following criteria to be eligible to DW program:

- Between the ages of 50 - 64
- Eligible for and currently receiving any widow(er)s benefits under Title II Section 202
- **Not** entitled to Medicare Part A hospital insurance
- Ineligible for SSI/SSP benefits due to the receipt of Title II widow(er)s benefits.

B. Consolidated Omnibus Reconciliation Act (COBRA)

COBRA 1985

Persons who met the criteria for zero SOC Medi-Cal under COBRA '85 provisions were given a deadline of July 1, 1988 to apply at their local welfare department. Although no COBRA applications were received in San Diego County, there is the possibility that a COBRA '85 Medi-Cal beneficiary could move to San Diego County and request transfer of his/her case. In this event, Pickle Handbook, Section 5 specifies information which must be provided from the original county of responsibility to San Diego County.

C. Omnibus Reconciliation Act (OBRA)

OBRA 1987

The Omnibus Reconciliation Act of 1987 (OBRA '87) amended the Social Security Act to extend Medi-Cal coverage to a new group of disabled widow(er) s. The amendment allows DW between the ages of 60 and 64 who lose SSI/SSP benefits as a result of becoming entitled to or receiving an increase in Title II benefits, to continue their Medi-Cal eligibility until they become eligible for Part A Medicare benefits. Eligibility under this provision was effective July 1, 1988.

Unlike COBRA '85 legislation, OBRA '87 does not establish an application deadline for potential eligibles. Potential OBRA '87 eligible DW are notified in their SSI/SSP discontinuance notice of their potential eligibility and are advised to apply at their local welfare department.

OBRA 1990

The Omnibus Budget Reconciliation Act of 1990 (OBRA-90) created a new group of Medi-Cal eligibles. Section 5103 of OBRA-90 extended Medi-Cal coverage to disabled widows age 50-59 that become ineligible to SSI/SSP benefits because of entitlement to or an increase in certain Title II widows insurance benefits. OBRA-90 mandated zero SOC Medi-Cal coverage for this group of disabled widows until Medicare begins for them.

D. Alert Messages and Notifications

DWs become eligible for Medicare Part A two years after the onset of disability. At that time, they become ineligible for the DW program. Beginning in December 1994, the DHCS Data System Branch sends MEDS alert messages concerning DW individuals who need to be terminated in two months from the DW program because of the impending receipt of Medicare Part A. These individuals are re-evaluated under another Medi-Cal program. The alert message will read, "Medicare Part A in Two Months: Re-evaluate for other category."

A NOA is required when approving or discontinuing Pickle, DAC, and DW benefits. MPG 05.10.03

E. Screening Process

When screening for Pickle, DAC, and DW, follow the steps in MPG 05.10.03.

F. Pickle Amendment Property Rules

The Property rules used for Pickle, DAC, and DW are based on SSI rules. See MPG 05.10.03 for the treatment of property when evaluating for DAC.

G. DW Financial Eligibility Determination

The individual is first evaluated to determine potential eligibility for the DW program.

When determining DW eligibility:

- Disregard the **entire** amount of the Title II, Section 202 benefits only - Form DHCS 7089 (Screening Worksheet)
  - Title II, Section 223 (disability) payments are to be counted
- Use the SSI/SSP payment standard that is in effect for the month that eligibility is being determined – MPG 11.01A

Procedures:

Refer to Processing Guide 29

References:

California Code of Regulations (CCR) Title 22, Section 50247
ACWDL 93-30, 94-86, 02-05, 10-01

Sunset Date:

This policy will be reviewed for continuance by 12/31/2022

Approval for Release:



Rick Wanne, Director
Eligibility Operations

Revision Date:
12/01/2019

Background:
Effective December 1, 1987, a change in rules for overlapping Title II SSA disability and Title XVI (SSI/SSP) payments was made.

If the person is granted SSI/SSP first, and Title II benefits are approved several months later retroactively, that person is still potentially Pickle eligible. This section has been reformatted, no other changes have been made.

Policy:
In these instances, the Pickle applicant may have been required to reimburse the SSI/SSP program for any benefits received; however, he/she is still to be considered to have been eligible for and entitled to receive both SSA and SSI/SSP in the same month.

This provision does not apply to persons who are determined ineligible for SSI/SSP for reasons other than receipt of SSA benefits.

Example: Jack Overlap applied for SSI/SSP and SSA disability on June 19, 1990. The Social Security Administration computed and approved the SSI/SSP grant before computing the SSA payments. Consequently, Jack began receiving SSI/SSP benefits effective June 19, 1990. His SSA benefits were approved in October 1992 with an effective date of June 1990. It was determined that his SSA payments were marginally more than his SSI/SSP payments. As a result, his SSI/SSP benefits were discontinued effective October 31, 1992, and he was required to pay back the SSI/SSP received.

Jack is considered to be potentially Pickle eligible at the time of the January 1993 SSA cost of living increase and a Pickle Amendment eligibility determination must be completed.

Program Impacts:
None

References:
California Code of Regulations (CCR) Title 22, Section 50247
ACWDL 93-30, 94-86, 10-01, 02-05

Sunset Date:
This policy will be reviewed for continuance by 12/31/2022

Approval for Release:

12-3-19

Rick Wanne, Director
Eligibility Operations